

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Sebastian Saavedra	Team: Squad #01	CCRB Case #: 202001428	☒ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Thursday, 02/06/2020 4:50 PM, Thursday, 02/06/2020 5:05 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 3/23/2022	Precinct: 102
Date/Time CV Reported Thu, 02/06/2020 9:03 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 02/20/2020 11:12 AM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. An officer			
2. POM Michael Renzulli	24397	962724	113 PCT
3. PO Paul Chierico	03418	936344	113 DET
4. PO Eric Jordan	09041	941973	113 PCT
5. Officers			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO John Lapierre	26864	955032	113 DET
2. POM Darrell Glenn	26014	943303	102 PCT
3. POF Jalisa Williams	22390	963336	102 PCT
4. POM Christophe Harris	00768	943353	102 PCT
5. PO Kayla Mcquillan	12978	966210	113 PCT
6. SGT Michael Wigdzinski	04923	951438	113 PCT
7. POM Jeff Biondo	21910	962258	102 PCT
8. POM Giancarlo Pineda	23274	962694	102 PCT
9. POM Daniel Oliver	14462	955273	102 PCT
10. POM Matthew Bacile	03157	960104	102 PCT
11. POM Mandeep Cheema	25433	950196	102 PCT
12. POM Eric Amato	25424	962923	102 PCT
13. POM Edgar Godinez	04747	962436	102 PCT
14. LT Mark Dumelle	00000	943197	102 PCT
15. POM Luke Henke	25567	950579	102 PCT
16. POF Kerrianne Vulpis	20771	963317	102 DET

Officer(s)	Allegation	Investigator Recommendation
A . PO Paul Chierico	Force: Police Officer Paul Chierico used physical force against § 87(2)(b)	A . Unsubstantiated
B . Officers	Force: Officers hit § 87(2)(b) against a vehicle.	B . Unfounded
C . PO Eric Jordan	Discourtesy: Police Officer Eric Jordan spoke discourteously to § 87(2)(b)	C . Substantiated

Officer(s)	Allegation	Investigator Recommendation
D . An officer	Abuse: An officer refused to provide his name to § 87(2)(b) and § 87(2)(b)	D . Officer(s) Unidentified
E . An officer	Force: An officer used physical force against § 87(2)(b)	E . Officer(s) Unidentified
F . An officer	Abuse: An officer threatened § 87(2)(b) with the use of force.	F . Officer(s) Unidentified
§ 87(2)(b)		

Case Summary

February 6, 2020, § 87(2)(b) filed a complaint over the phone with IAB. On February 20, 2020, it was received at the CCRB. § 87(2)(b) filed a related complaint with the CCRB during an interview on April 20, 2020.

On February 6, 2020, at approximately 4:57pm, § 87(2)(b) visited § 87(2)(b) to bring a friend there for medical treatment. PO John Lapierre and PO Paul Chierico of the 113rd Precinct Detective Squad, and PO Michael Renzulli of the 113th Precinct, handcuffed § 87(2)(b). During a struggle to handcuff him, PO Chierico punched § 87(2)(b) in the ribs (**Allegation A: Force - unsubstantiated**). Officers removed § 87(2)(b) to a police car. As the officers placed him inside, § 87(2)(b) hit his head on the top of the car door frame, and lost consciousness (**Allegation B: Force -unfounded**). While outside the hospital, PO Eric Jordan of the 113th Precinct told § 87(2)(b) “tell your fucking boyfriend to stop acting like a fucking idiot.” (**Allegation C: Discourtesy-substantiated**). § 87(2)(b) later awoke inside § 87(2)(b). § 87(2)(b) was arrested and charged with § 87(2)(b).

§ 87(2)(b) (Board Review 36). § 87(2)(b) was arrested and charged with § 87(2)(b).

Later that same day, § 87(2)(b)'s parents, § 87(2)(b) and § 87(2)(b) visited § 87(2)(b) at § 87(2)(b). Upon arriving at his room, an officer told § 87(2)(b) and § 87(2)(b) to leave the room. The officer refused to provide his name to § 87(2)(b) and § 87(2)(b) (**Allegation D: Abuse of Authority - officer unidentified**), pushed § 87(2)(b) (**Allegation E: Force - officer unidentified**), and pointed his taser at § 87(2)(b) (**Allegation F: Abuse of Authority - officer unidentified**). Neither § 87(2)(b) nor § 87(2)(b) was arrested or summonsed. § 87(2)(g), § 87(4-b)

Body-worn camera (BWC) footage was obtained for this incident. The NYPD released only 4 of 12 BWC videos recorded during this incident as the investigation was unable to obtain a BWC waiver from § 87(2)(b) (Board Reviews 01, 02, 03, and 04).

Findings and Recommendations

Allegation (A) Force: Police Officer Paul Chierico used physical force against § 87(2)(b)

§ 87(2)(b) testified that on February 6, 2020, he was in the emergency room at § 87(2)(b) as he had brought his friend there to treat a dog bite. § 87(2)(b) was speaking on the phone with his girlfriend, when approximately three or four police officers approached him from behind. An officer, who he described only as male, grabbed his right arm, removed his cell phone out of his hand, and placed him in handcuffs. A second officer, identified by the investigation as PO Chierico, cut the palm of his hand on the handcuffs, accused § 87(2)(b) of cutting him with an object, and subsequently punched § 87(2)(b) in the ribs on the right side of his body. § 87(2)(b) attempted to turn his body around to see who was grabbing him and officers accused him of resisting, though § 87(2)(b) denied doing so (Board Reviews 5 and 6).

Attempts to obtain a statement from § 87(2)(b) were unsuccessful.

PO Renzulli's BWC footage opens inside the hospital with PO Renzulli briefly speaking to PO Chierico and PO Lapierre (who are both white males dressed in business attire and PO Chierico in an NYPD jacket) and momentarily with what appears to be a black male/female couple.

§ 87(2)(b) (a tall, thin, black male wearing black pants and a white t-shirt) is walking in the background and talking on a cell phone. As the audio for this BWC does not begin until one minute into the footage, this conversation is not captured. PO Chierico then walks in § 87(2)(b)'s direction, and PO Renzulli follows him. PO Lapierre walks in the opposite direction to head off § 87(2)(b). PO Chierico approaches § 87(2)(b) from his left side and first grabs his upper left arm and then turns face to face with him and grabs his right arm as well.

PO Renzulli immediately grabs § 87(2)(b)'s left forearm. PO McQuillan grabs § 87(2)(b)'s left forearm with both her hands. PO Lapierre is standing on the right side of § 87(2)(b) though because § 87(2)(b) is between PO Renzulli and PO Lapierre, it is unclear whether PO Lapierre has any hand on him at this point. PO Chierico can be seen saying something to § 87(2)(b). At 01:00, the audio begins, and an officer is heard saying, "get off." § 87(2)(b) repeatedly says, "I'm not doing anything." An offscreen officer yells "get on the ground" twice. § 87(2)(b) replies, "I'm on the ground. An officer then says "put the cuffs on. PO Renzulli, PO Chierico, and an additional officer can be seen intermittently grabbing § 87(2)(b)'s wrists while he appears to repeatedly pull them away. At 01:26, PO Renzulli places handcuffs on § 87(2)(b). Because PO Renzulli is so close to § 87(2)(b) many of the physical movements are unclear. At approximately 01:30, § 87(2)(b) kneels on the ground, though it is unclear how that occurs. PO Chierico is on § 87(2)(b)'s left side. PO Lapierre is observed on his right side while he is kneeling on the floor but the video does not capture where his hands are. § 87(2)(b) does not make any allegation of being punched and does not give any indication that he was in pain. No officer is observed punching § 87(2)(b) in the side. Once he is cuffed, § 87(2)(b) says, "You don't need to hold me like that sir." PO Renzulli then stands up fully and PO McQuillan is visible in approximately 20 feet away placing § 87(2)(b) in handcuffs. The video ends while they are all still inside the hospital (Board Review 02).

PO Lapierre testified that, at approximately 4:00 pm on February 6, 2020, he and PO Chierico received a 911 call for a stabbing victim. § 87(2)(f), § 87(2)(b)

§ 87(2)(b) PO Lapierre, PO Chierico, two officers from the 113th Precinct, and two officers from the 103rd Precinct, whom PO Lapierre was not familiar with, approached § 87(2)(b). When officers approached him, § 87(2)(b) resisted by tensing his body, and pulling his arms away from officers, bringing them closer to his body. § 87(2)(b) did not comply with orders given by officers. It took three to four officers approximately 30 seconds to handcuff him. PO Lapierre stated that § 87(2)(b) was very strong which resulted in difficulty restraining him. PO Chierico brought § 87(2)(b) to the ground, at which point either PO Chierico or PO Lapierre handcuffed him (Board Review 09).

§ 87(2)(f) PO Lapierre and PO Chierico approached § 87(2)(b) alongside several officers whom PO Chierico did not know. PO Chierico suspected that § 87(2)(b) might have a weapon on his person at this time. PO Chierico, PO Lapierre, and a uniformed officer attempted to handcuff § 87(2)(b). § 87(2)(b) flailed his hands and pushed officers off his body. PO Chierico and § 87(2)(b) subsequently fell to the floor side by side, and PO Chierico sustained a laceration on the palm of his left hand from an unknown object. PO Chierico and PO Lapierre handcuffed § 87(2)(b) lifted him to his feet, and walked him outside to a police car (Board Review 08).

§ 87(2)(f), § 87(2)(b) PO Renzulli, PO McQuillan and officers from the 103rd Precinct then approached and apprehended § 87(2)(b) and an officer handcuffed him. PO Renzulli did not recall being involved with handcuffing § 87(2)(b) until viewing his BWC. He then recalled that § 87(2)(b) tensed and refused to put his hands behind his back. PO Renzulli's involvement included grabbing § 87(2)(b)'s right hand and wrist (Board Review 8).

§ 87(2)(f) at which point § 87(2)(b) approached

them and PO McQuillan's attention shifted to her. She did not recall details of the struggle between other officers and § 87(2)(b) (Board Review 07).

Officers are required to use only the reasonable force necessary to gain control or custody of a subject. NYPD Patrol Guide 221-01 (Board Review 11).

§ 87(2)(g)

Therefore, it is recommended that **Allegation A** be closed as **unsubstantiated**.

Allegation (B) Force: Officers hit § 87(2)(b) against a vehicle.

Officers, whom § 87(2)(b) did not describe, walked him outside the hospital and pushed him into a police car, causing him to hit his forehead on the top of the back passenger door of the car. § 87(2)(b) immediately lost consciousness. § 87(2)(b) regained consciousness in a bed in the emergency room. He did not provide a signed HIPAA form to the investigation so his medical records were unable to be obtained (Board Reviews 05 and 06).

§ 87(2)(b)'s arrest photo shows no visible injury to his forehead. It also describes him as 6'8, 200 pounds (Board Review 30).

PO McQuillan's BWC opens with her walking out of the emergency room of § 87(2)(b) while holding on to § 87(2)(b). PO Chierico and PO Renzulli are each holding one of § 87(2)(b)'s arms while walking him out to a marked patrol vehicle. PO McQuillan escorts § 87(2)(b) a short distance behind them. At 00:52 PO Renzulli looks down and tosses his BWC to the ground as they escort § 87(2)(b). The audio engages at 01:00 and PO Renzulli tells § 87(2)(b) that the camera fell and he and PO McQuillan inform her that there are other cameras. At approximately 01:15 PO Chierico and PO Renzulli place § 87(2)(b) against the marked vehicle assigned to PO Renzulli. § 87(2)(b) is significantly taller than the top of the vehicle as well as PO Chierico and PO Renzulli who are both 5'10 per their service photos (Board Reviews 31-32). At 01:22, § 87(2)(b) appears to be pulling away from PO Chierico and says, "no, I'm not going nowhere until his camera is on. I'm not going nowhere sir." During that time PO McQuillan and § 87(2)(b) turn their backs to § 87(2)(b) and walk a few feet in the opposite direction before turning back toward § 87(2)(b). The rear door of the patrol vehicle is closed when they turn their backs to § 87(2)(b) and the officers. As they turn back toward § 87(2)(b) and the officers, § 87(2)(b) is standing and the rear passenger door is approximately one foot open. At that moment (approximately 01:30), and just as § 87(2)(b) says that he is not going anywhere, he falls to the ground. The rear door opens as § 87(2)(b) falls as PO Renzulli can be seen holding onto § 87(2)(b) as well as the door. The video does not show § 87(2)(b)'s head come into contact with the patrol vehicle and no officer action is observed that seems to relate to § 87(2)(b) falling to the ground. An officer can be heard saying, "yo, why you resisting man?" and telling him to get up. Over the next four to five minutes, § 87(2)(b) screams that officers are trying to grab his neck, periodically appears to go limp (02:42), screams "they're trying to kill me" "you trying to choke me" and repeatedly screaming "help" (03:24). § 87(2)(b) screams various accusations throughout, that § 87(2)(b) cannot breathe, that he has seizures, and that he is unconscious. Officers try multiple times to place him in the rear of the marked patrol vehicle without success. At 06:13 a woman in a white medical coat stands next to § 87(2)(b) who is on the ground and PO McQuillan walks away with § 87(2)(b) (Board Review 01).

PO Lapierre stated that once § 87(2)(b) was handcuffed, officers walked

§ 87(2)(b) to a police car. PO Lapierre remained inside the hospital, with § 87(2)(b). Shortly thereafter, PO Lapierre learned that additional officers were needed to restrain § 87(2)(b). PO Lapierre went outside and observed § 87(2)(b) go limp several times and drop to the floor, refusing to go inside the police car. § 87(2)(b) convulsed and “pretended” to have a seizure. PO Lapierre stated that at some point during this interaction, a doctor was present and said that § 87(2)(b) was not really having a seizure. PO Lapierre grabbed one of § 87(2)(b)'s arms as he went limp outside the car, pulled him up from the ground. He did not recall having any additional physical contact with § 87(2)(b). § 87(2)(b) did not lose consciousness at any point. PO Lapierre did not know whether § 87(2)(b) hit any part of his body against the frame of the police car door. PO Lapierre then returned to the stationhouse and did not have any further interaction with § 87(2)(b) (Board Review 9).

PO Chierico stated that after they walked § 87(2)(b) outside to the patrol car, § 87(2)(b) pretended to have a seizure by going limp, dropping to the floor, convulsing, and closing his eyes. PO Chierico stated that he was familiar with a person prone to seizures in his personal life and stated that § 87(2)(b)'s behavior did not match. Further, he stated that a doctor was on scene at some point during this struggle and said that, based on their observation, § 87(2)(b) was not having a seizure. PO Chierico did not observe any injuries on § 87(2)(b) at any point during this incident and did not recall him complaining of any injuries. Shortly thereafter, EMTs arrived, placed § 87(2)(b) on a gurney, and brought him back inside the hospital. PO Chierico had no further interaction with § 87(2)(b). PO Chierico did not recall § 87(2)(b) hitting his head on the frame of the police car or losing consciousness (Board Review 10).

PO Renzulli testified that while in front of the patrol car, § 87(2)(b) went limp and momentarily dropped to the floor. § 87(2)(b) was admitted to the hospital. He did not recall § 87(2)(b) complaining of any pain or injury to his head or losing consciousness at any point (Board Review 8).

PO Jordan stated that he was at the hospital with an unrelated prisoner when he observed officers apprehend § 87(2)(b). While standing next to a patrol car, § 87(2)(b) went limp and convulsed several times and officers were unable to place him inside the patrol car. While he noted that there was a physical struggle between § 87(2)(b) and officers, PO Jordan did not recall any specifics and did not see § 87(2)(b) strike his head on the patrol vehicle.

§ 87(2)(b) stated that § 87(2)(b) informed her that he suffered a seizure as a result of being assaulted by a detective. Prior to this incident, § 87(2)(b) had never suffered a seizure (Board Review 14).

§ 87(2)(g)

_____, and it is recommended that **Allegation B** be closed as **unfounded**.

Allegation (C) Discourtesy: Police Officer Eric Jordan spoke discourteously to § 87(2)(b).

§ 87(2)(g)

At approximately 04:44 in PO McQuillan's BWC footage, § 87(2)(b) says, "please do not force him, you could gently place him in the car." PO Jordan, who is walking away from § 87(2)(b) at the time, replies, "well tell your fucking boyfriend to stop acting like a fucking idiot" (Board Review 01).

PO Jordan did not recall speaking discourteously to § 87(2)(b). Once he reviewed the BWC, PO Jordan acknowledged that it was him who was heard on video making the above-mentioned comment to § 87(2)(b). PO Jordan did not know why he told § 87(2)(b) to tell her fucking boyfriend to stop acting like a fucking idiot (Board Review 12).

Officers are prohibited from using discourteous language when interacting with civilians. NYPD Patrol Guide 203-10 (Board Review 13).

DCT Case #2018-18951 recognized that officers may use profane remarks during stressful or chaotic situations, but they may not use such remarks to demean civilians (Board Review 37).

§ 87(2)(g)

§ 87(2)(g) it is recommended that **Allegation C** be closed as **substantiated**.

Allegation (D) Abuse of Authority: An officer refused to provide his name to § 87(2)(b) and § 87(2)(b)

Allegation (E) Force: An officer used physical force against § 87(2)(b)

Allegation (F) Abuse of Authority: An officer threatened § 87(2)(b) with the use of force.

§ 87(2)(b) testified that she arrived at § 87(2)(b) with her husband, § 87(2)(b) and observed § 87(2)(b) on a hospital bed. § 87(2)(b) told her that he had suffered a seizure. An officer told § 87(2)(b) to leave the room, placed a hand on her arm, and guided her out of the room. § 87(2)(b) told the officer that what he was doing was unnecessary and asked for his name. The officer did not reply. § 87(2)(b) approached the officer approximately three minutes later and the officer drew his Taser, pointed it at § 87(2)(b) and told him and § 87(2)(b) to leave. § 87(2)(b) described this officer as a white male, 5'7" tall, in his mid-20s, wearing a blue uniform, with an athletic build. § 87(2)(b) then called 911 and requested a supervisor. Approximately 20 minutes later an officer, identified by the investigation as PO Harris, arrived and she asked him to provide the white officer's name. He told her that he could not as the white officer had already left (Board Review 14).

§ 87(2)(b) testified that, once he and § 87(2)(b) arrived at the hospital, he asked the officer for his name. The officer did not provide it, told him to leave, and pushed § 87(2)(b) on his chest, and pushed § 87(2)(b). The officer then drew his Taser, at which point § 87(2)(b) stepped back approximately five feet and put his hands in the air. § 87(2)(b) asked the officer why he had drawn his Taser if nothing was wrong. The officer did not reply. § 87(2)(b) and § 87(2)(b) then left the hospital. § 87(2)(b) described the officer as a white male, 5'8" to 5'9" tall, of muscular build, with sandy brown hair, wearing a blue uniform. § 87(2)(b) also stated that two black male officers in their 40s were in the room with § 87(2)(b) (Board Review 15).

§ 87(2)(b) testified that when he awoke in a bed in a hospital room an officer, who he had not previously interacted, was in the room with him. § 87(2)(b) approached him and asked what was happening. The officer told § 87(2)(b) to move and shoved her with both hands on her chest. § 87(2)(b) immediately approached and asked what was happening, and the officer drew his taser, pointed it at § 87(2)(b)'s chest from approximately

one foot away for two to three minutes, and told him, “Get the hell out of here.” § 87(2)(b) and § 87(2)(b) then left (Board Reviews 05 and 06).

The intake log generated by IAB for this case (No. § 87(2)(b)) identified PO Harris and PO Williams as responding to § 87(2)(b)'s call in which she complained about an officer putting his hands on her. § 87(2)(g)

Event No. § 87(2)(b) was generated at 8:53pm regarding § 87(2)(b)'s 911 call. The Event information shows that she told the operator that an officer had put his hands on her, but that no weapons were involved, and no injuries had resulted. § 87(2)(g)

§ 87(2)(b) (Board Review 17).

PO Harris' memo book states that he responded to a 10-52 (dispute inside) at 22:00. His comments state that § 87(2)(b) had had a dispute with an officer in the Emergency Room, and that the officer was sitting on § 87(2)(b). The officer told § 87(2)(b) and § 87(2)(b) that § 87(2)(b) could not have visitors. § 87(2)(b) and § 87(2)(b) still tried to talk to him, and the officer pushed them away. § 87(2)(g)

§ 87(2)(b) (Board Review 19).

PO Harris, assigned to the 102nd Precinct, testified that he responded to § 87(2)(b) for an unrelated dispute, and was standing in the reception area of the hospital when he saw § 87(2)(b) and § 87(2)(b) enter the room. They approached PO Harris and began swearing. § 87(2)(b) and § 87(2)(b) told PO Harris that they had been to the hospital to see their son, and an officer had told them they had to leave and had pushed them out of the room. PO Harris entered the emergency room and spoke to the officer, who was with § 87(2)(b). This officer did not mention making any physical contact with § 87(2)(b) or § 87(2)(b). PO Harris did not recall the officer's name or command, but stated that it was a white male who was not assigned to the 102nd Precinct (Board Review 20).

PO Jalisa Williams, PO Harris' partner on February 6, 2020, is a black female. Neither § 87(2)(b) nor § 87(2)(b) testified to interacting with a female officer.

Neither PO Harris nor PO Williams had any BWC from this incident (Board Review 34). No one is listed on the 113th Precinct roll call with a hospital assignment (Board Review 33).

§ 87(2)(g).
Therefore, it is recommended that **Allegations D, E, and F** be closed as **officer unidentified**.

§ 87(2)(g), § 87(4-b)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (Board Review 21).
- § 87(2)(b) has been party to one other CCRB complaint as has been named as a victim in two other allegations (Board Review 22):
 - § 87(2)(b)
- This is the first complaint to which § 87(2)(b) and § 87(2)(b) have been a

- PO Chierico, who has since been promoted to detective, has been a member-of-service for 17 years and has been a subject in 13 other CCRB cases and 47 allegations, 12 of which were substantiated:
 - 201407041 involved substantiated allegations of force, property damage, and retaliatory arrest. The Board recommended charges and the NYPD imposed forfeiture of 20 vacation days.
 - 201501778 involved substantiated allegations of force, abuse (other), and stop. The Board recommended command discipline B and the NYPD imposed the same.
 - 201508966 involved substantiated allegations of frisk and search of premises. The Board Recommended command discipline A and the NYPD imposed the same.
 - 201508966 involved substantiated allegations of stop. The Board recommended command discipline A and the NYPD imposed the same.
- PO Jordan has been a member-of service for 15 years, and has been a subject in two prior CCRB cases and three allegations, two of which were substantiated:
 - 201504129 involved substantiated allegations of a stop and a gun pointed. The board recommended command discipline B and A respectively, and the NYPD imposed formalized training for both allegations.
 - § 87(2)(g)
- PO Renzulli has been a member-of-service for five years, and has been a subject in four other CCRB cases and five allegations, none of which were substantiated. § 87(2)(g)

- This case was not suitable for mediation.
- As of December 29, 2021, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards to this complaint (Board Review 23).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

[REDACTED] [REDACTED]
[REDACTED]
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[REDACTED]
[REDACTED]

Investigator:	<u>Inv. Saavedra</u> Signature	<u> </u> Print Title & Name	<u>2/16/2022</u> Date
Squad Leader:	<u>Mgr. Joy Almeyda</u> Signature	<u> </u> Print Title & Name	<u>2.19.22</u> Date

Reviewer: _____
Signature Print Title & Name Date